Wyoming AI Policy Development Guidance: Data and Student Privacy Passages

Excerpted verbatim from *Guidance for Wyoming School Districts on Developing Artificial Intelligence Use Policy (Wyoming Department of Education, 2024)*. Page numbers match the document's own page numbering. Ellipses (…) mark omitted text. The document is a framework of questions for districts; passages quoted are those that mention privacy, data or compliance.

Guiding Principles (excerpt)

Source: page 4

- **Compliance:** Reaffirm adherence to existing policies and procedures and any relevant federal regulations (e.g., FERPA, CIPA, & COPPA).

Compliance

Source: pages 4–5

When implementing AI systems, the key areas of technology policy to ensure compliance with are privacy, data security, student safety, data transfer and ownership, and child and youth protection. The Council of Great City Schools and the Consortium for School Networking (CoSN), in partnership with Amazon Web Services, have developed the K-12 Generative Artificial Intelligence (Gen AI) Readiness Checklist to help districts prepare for implementing AI technology solutions. The checklist provides a curated list of questions to help district leaders devise implementation strategies across six core focus areas: executive leadership, operations, data, technology, security, and risk management. Questions that need to be addressed include the following:

- What is the plan to conduct an inventory of systems and software to understand the current state of AI use and ensure adherence to existing security and privacy regulations?
- Does the education system enforce contracts with software providers, stipulating that any use of AI within their software or third-party providers must be clearly revealed to district staff and first approved by district leadership?
- Does the plan take into account any implications for FERPA, CIPA, and COPPA, or if applicable, PPRA and GDPR?

Policy Review: Review existing policies (excerpt)

Source: page 8

There may be existing policies impacted by AI. These may include the Acceptable Use Policy, Academic Integrity Policy, Bullying Policy, and Privacy Policy.

Privacy Policies address student data. AI companies are not all educationally focused and how they collect, store, and utilize student data needs to be scrutinized. Privacy Policies may need to be examined to ensure that they cover AI.